Record-keeping and pay slips

Overview

Employers who engage employees under relevant Commonwealth workplace laws are required to:

- make and keep accurate and complete records for all of their employees, including employees on an annual wage or salary (for example, time worked and wages paid)
- issue pay slips to each employee.

These record-keeping and pay slip obligations are designed to ensure that employees receive their correct wages and entitlements.

What are the record-keeping obligations?

Employee records must:

- be in a form that is readily accessible to a Fair Work Inspector
- be in a legible form and in English (preferably in plain, simple English)
- be kept for 7 years
- not be altered unless for the purposes of correcting an error
- not be false or misleading to the employer's knowledge.

Employee records are private and confidential. Generally, no one can access them other than the employee, their employer, and relevant payroll staff. Employers must make copies of an employee's records available at the request of an employee or former employee.

However, Fair Work Inspectors and organisation officials (such as a trade union) may access employee records (including personal information) to determine if there has been a contravention of relevant Commonwealth workplace laws.

For further information on the powers of Fair Work Inspectors entering premises and requiring the production of records or documents, please see the Powers of Fair Work Inspectors fact sheet at fairwork.gov.au/factsheets

For further information on the rights of organisation officials relating to entering premises and requiring the production of records or documents, please see the Right of entry fact sheet at fairwork.gov.au/factsheets

What information must be made and kept in employee records?

A range of information must be made and kept for each employee as prescribed by the Fair Work Act and Fair Work Regulations.

General records

General employment records must include all of the following:

- the employer's name
- the employer's Australian Business Number (ABN) (if any)
- the employee's name
- the employee's commencement date
- the basis of the employee's employment (full-time, part-time or casual, and permanent or temporary).

Pay records

Records of pay must include all of the following:

- the rate of pay paid to the employee
- the gross and net amounts paid and any deductions from the gross amount
- the details of any incentive-based payment, bonus, loading, penalty rate, or other monetary allowance or separately identifiable entitlement paid.

Hours of work records

Records relating to hours worked by employees are to include the following:

- in the case of a casual or irregular part-time employee who is guaranteed a pay rate set by reference to time worked, a record of the hours worked by that employee
- for any other type of employee, the record must specify the number of overtime hours worked each day, or when the employee started and finished working overtime hours (but only if a penalty rate or loading must be paid for overtime hours actually worked)
- if the employer and employee have agreed to an averaging of the employee's work hours, a copy of the written agreement.

Under some awards, employers and employees may agree to time off instead of being paid for overtime worked. These awards can require that employers keep these agreements as a record.

Leave records

If an employee is entitled to leave, the record must include both:

- leave taken (if any)
- the balance of the employee's entitlement to that leave from time to time.

If an employer and an employee have agreed to the employee taking a period of annual leave in advance of an accrued amount of leave, the employer must keep a copy of the agreement which:

- states the amount of leave to be taken in advance and the date on which the leave is to commence
- must be signed by the employer and the employee, and if the employee is under 18 years of age, by the employee's parent or guardian.

If an employer and employee have agreed to cash out an accrued amount of leave, the employer must keep a copy of the agreement.

The agreement must state:

- the pay rate for the leave cashed out
- when the payment was made.

Individual flexibility arrangement records

If an employer and employee agree in writing to an individual flexibility arrangement in relation to an award or registered agreement, a record must include both:

- a copy of the agreement
- a copy of any notice or agreement terminating the flexibility arrangement.

Transfer of business records

Where there has been a transfer of business under the Fair Work Act, at the time of transfer, the old employer is required to transfer to the new employer each employee record concerning a transferring employee. If the transferring employee becomes an employee of the new employer after the transfer, the new employer must ask the old employer to provide them with the employee's records. The old employer must give the records to the new employer. For further information regarding transfer of business, please see our When businesses change owners page at fairwork.gov.au/transferofbusiness

Guarantee of annual earnings records

If an employer gives a guarantee of annual earnings under the Fair Work Act, the employer must make and keep a record of:

- the guarantee
- the date of any revocation of the guarantee (where applicable).

Annualised wage arrangement records

If an employee is on an annualised wage arrangement under an award, some awards require employers to keep extra records for these employees. See our Annualised wages page for more information at fairwork.gov.au/annualised-salaries

Contractual offsetting arrangements records

Some employers may try to rely on an employment contract or a separate agreement to offset above-award or agreement pay rates or salaries against award or agreement entitlements. This is known as a contractual offsetting arrangement. This is not an annualised wage arrangement.

Employers using contractual offsetting arrangements still have obligations to make and keep certain kinds of records relating to award or agreement entitlements and overtime hours. For more information, go to our Record-keeping page at fairwork.gov.au/recordkeeping

Termination records

Where the employment has been terminated, the records must include:

- whether the employment was terminated by consent, by notice, summarily, or in some other manner (specifying the manner)
- if notice was provided and, if so, how much
- the name of the person who terminated the employment.

Superannuation (super) contributions records

In most cases an employer is required to pay super for an employee. The record must include:

- the amount of the contributions made
- the dates on which each contribution was made
- the period over which the contributions were made
- the name of any fund to which a contribution was made
- the basis on which the employer became liable to make the contribution, including a record of any election made by the employee (including the date) to have their super contributions paid into a particular fund.

Note: Employers who contribute a defined benefit interest in a defined benefit fund do not have to include these contributions in the record.

What are the pay slip obligations?

Pay slips must be issued to each employee:

- within one working day of pay day, even if an employee is on leave
- in electronic form or hard copy.

It is best practice for pay slips to be written in plain and simple English.

What information must be included on a pay slip?

Pay slips must contain details of the payments, deductions, and super contributions for each pay period. The following information must be included on all pay slips issued to each employee as prescribed by the Fair Work Act and the Fair Work Regulations.

A pay slip must include all of the following:

- the employer's name
- the employer's ABN (if any)
- the employee's name
- the date of payment
- the pay period
- the gross and net amount of payment
- any loadings (including casual loading), monetary allowances, bonuses, incentive-based payments, penalty rates, or other separately identifiable entitlement paid. For example, a note could be included on a pay slip that the hourly rate incorporates the relevant casual loading.

Additionally, where relevant, a pay slip must include any of the following:

- if the employee is paid an hourly pay rate:
  - the ordinary hourly rate
  - the number of hours worked at that rate
  - the total dollar amount of pay at that rate

- if the employee is paid an annual rate of pay (salary):
  - the rate as at the last day in the pay period
  - the employee's annual pay rate
- any deductions made, including the name, or the name and number, of the fund or the account of each deduction
- if the employer is required to make super contributions for the benefit of the employee:
  - the amount of each contribution the employer made or intends to make during the pay period
  - the name, or name and number, of any super fund into which the contributions were made or will be made.

However, when an employer needs to give a new employee a pay slip within 14 days of their first pay day, they don't have to include the superfund name or number if:

- the employee hasn't notified the employer of their choice of super fund
- the employer hasn't been able to obtain the employee's stapled super fund details from the Australian Taxation Office (ATO).

For more information, visit the Australian Taxation Office's website at ato.gov.au

What information must not be included on a pay slip?

Pay slips **must not** mention paid family and domestic violence leave, however an employer does need to keep a record of this leave balance and any leave taken by employees.

This leave must be shown on a pay slip as ordinary hours of work, or another kind of payment for performing work such as an allowance, bonus or overtime payment.

It is best practice to show this time on the pay slip in a way that makes it appear that the employee has not taken leave.

However, the pay slip may record the time as another type of leave (for example, annual leave) at the employee's request. Find out more about pay slips at fairwork.gov.au/payslips

What deductions may be made from an employee's pay?

Taking money out of an employee's pay before it's paid to them is called a deduction.

An employer can only deduct money if the deduction is reasonable and if:

- the employee agrees in writing and it's mainly for the employee's benefit
- it's allowed by a law, a court order, or by a Fair Work Commission order
- it's allowed under the employee's award, or
- it's allowed under the employee's registered agreement and the employee agrees to it.

An employee can make a one-off written authorisation that gives their employer permission to deduct money from their pay, even where the amount can change from year to year.

An employee's written agreement to a deduction must be genuine and can be withdrawn in writing at any time. An employee can't be forced to agree to a deduction.

Examples of permitted deductions include:

- salary sacrifice arrangements
- voluntary contributions into an employee's super fund.

Find more information about deductions at fairwork.gov.au/deductions

Best practice guidelines for issuing electronic pay slips

Electronic pay slips must be provided to an employee (unless issued a hard copy) and include the same information as hard copy pay slips.

Employers should:

- give electronic pay slips to each worker, such as via email or into an electronic personal account (employers should not simply store them on a database)
- issue electronic pay slips in an easily printable format.

By way of best practice, employers should:

- issue electronic pay slips to employees securely and confidentially
- ensure that employees can access and print their electronic pay slips in private (for example, it would be inappropriate to issue an electronic pay slip to an employee who doesn't have access to a computer terminal to privately read and print their pay slip).

For more information about obligations when managing an employee's personal information, please visit the Workplace privacy best practice guide at fairwork.gov.au/bestpracticeguides

Contravention of record-keeping and pay slip obligations

The Fair Work Ombudsman may pursue a number of enforcement actions in relation to contraventions of record-keeping and pay slip obligations.

Fair Work Inspectors may issue an employer with an infringement notice for failing to meet their record-keeping and pay slip obligations under the Fair Work Act.

An infringement notice is similar to an on-the-spot fine and is an alternative to taking matters to court. An infringement notice can be issued within 12 months after the day on which the contravention(s) is alleged to have occurred. Generally, an employer has 28 days to pay the penalty in the infringement notice.

For further information on infringement notices, including their payment, please see the Infringement notices fact sheet at fairwork.gov.au/factsheets

Fair Work Inspectors may recommend the matter be taken to court if an employer fails to meet their record-keeping obligations.

A court may impose penalties for record-keeping and pay slip contraventions. A court may also find that record-keeping contraventions are 'serious contraventions', attracting higher penalties, if they occurred knowingly or recklessly. Find the current maximum penalty amounts at fairwork.gov.au/litigation

Making, keeping or providing false or misleading records or information

The Fair Work Act prohibits a person from making or keeping employee records, or giving pay slips, which they know are false or misleading. It also prohibits a person from knowingly or recklessly providing false or misleading information or documents to the Fair Work Ombudsman, a Fair Work Inspector, or a Fair Work Ombudsman Officer exercising certain powers. This includes omitting something from information that makes it false or misleading.

Where the false or misleading nature of the employee record, pay slip or information is material (for example, it is not trivial), a court can impose penalties.

In cases where the false records are made or kept either knowingly or recklessly, a court can impose significantly higher penalties for a 'serious contravention'.

In some cases, knowingly giving or producing false or misleading information or documents to officials may also be a criminal offence.

Find the current maximum penalty amounts at fairwork.gov.au/litigation

Other consequences of not meeting record-keeping or pay slip requirements

In addition to penalties for not keeping records, the Fair Work Act includes a presumption in favour of a person who makes wage-related allegations in a court proceeding, where the employer has:

- failed to meet their record-keeping and pay slip obligations, or
- failed to make records available for inspection.

If the person bringing the claim shows the employer didn't comply with the record-keeping and/or pay slip requirement, the employer will be required to disprove the person's wage-related allegation in court.

This onus of disproving the allegation will not apply if the employer can show they had a reasonable excuse for not meeting the record-keeping, pay slip or record inspection obligation.

Record-keeping and pay slip templates for employers

The Fair Work Ombudsman has created various templates to help employers meet their record-keeping and pay slip obligations. You can download these templates at fairwork.gov.au/templates

Record-keeping and pay slip obligations are provided for by sections 535 and 536 of the Fair Work Act and regulations 3.31 to 3.46 of the Fair Work Regulations. See also section 718A of the Fair Work Act regarding false or misleading information or documents.

For practical advice to help you meet your record-keeping and pay slip obligations, complete our free

Record-keeping and pay slips online course at fairwork.gov.au/learning

Contact us

Fair Work online: fairwork.gov.au

Fair Work Infoline: **13 13 94**

Need language help?

Contact the Translating and Interpreting Service (TIS National) on **13 14 50**

Help for people who are deaf or have hearing or speech difficulties

You can contact us through the National Relay Service (NRS).

Select your preferred access option and give our phone number: **13 13 94**

The Fair Work Ombudsman is committed to providing you with advice that you can rely on. The information contained in this fact sheet is general in nature. If you are unsure about how it applies to your situation you can call our Infoline on 13 13 94 or speak with a union, industry association or a workplace relations professional.

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